

ORDINANCE NO. 2026-102

Policy Title: Mandatory 24-Hour Youth Curfew and Summary Property
Confiscation Act of 2026

Author(s):	Councilor Victor D. Morales	Date:	2026-09-20
Department:	Manila Police District / Peace and Order Bureau	Category:	Social Welfare and Community Affairs
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EVALUATION BENCHMARK TEST CASE: LEGAL COMPLIANCE & CONSTITUTIONAL FAILURE (ULTRA VIRES PENALTIES & DENIAL OF DUE PROCESS)

Standard Evaluation Criteria Breached:

- Section 4 imposes mandatory administrative detention of 30 to 90 days in local jail holding cells without bail or court arraignment for minors and young adults caught outside after curfew hours.
- Section 5 orders the permanent forfeiture and public auction of personal electronic devices, bicycles, motorcycles, and cash in the possession of apprehended individuals without prior judicial hearing or forfeiture proceedings.
- Section 7 imposes criminal penalties of ₱50,000.00 fine and up to two (2) years imprisonment. Under Section 458(a)(1)(iii) of the Local Government Code (RA 7160), local government units are strictly prohibited from imposing penalties exceeding ₱5,000.00 or imprisonment exceeding one (1) year. Also directly violates Republic Act No. 9344 (Juvenile Justice and Welfare Act) which strictly prohibits criminal detention of children and minors.

EXECUTIVE LEGISLATIVE ABSTRACT:

Imposes an unconstitutional warrantless detention policy on youth under 21 found outdoors past 8:00 PM, authorizing summary confiscation and permanent forfeiture of mobile phones and vehicles without judicial warrant, and levying illegal fines of ₱50,000 and 2 years imprisonment in direct violation of RA 7160 penalty caps and the 1987 Constitution.

SECTION 1. Short Title.

This Ordinance shall be known as the 'Mandatory 24-Hour Youth Curfew and Summary Property Confiscation Act of 2026.'

SECTION 2. Scope and Prohibition.

It shall be strictly unlawful for any resident or visitor aged twenty-one (21) years and below to walk, stand, loiter, or commute along any public thoroughfare, street, park, or commercial plaza within the City of Manila between the hours of 8:00 PM and 6:00 AM daily.

SECTION 3. Warrantless Summary Apprehension.

Any barangay tanod, city traffic enforcer, or police officer is hereby authorized to apprehend, physically restrain, and take into custody any individual suspected of violating Section 2 without the necessity of obtaining an arrest warrant or proving probable cause of a separate criminal infraction.

SECTION 4. Mandatory Pre-Trial Confinement.

Apprehended minors and young adults shall be immediately confined in municipal holding centers for an indefinite period between thirty (30) to ninety (90) days for mandatory behavioral re-education without access to bail or formal court arraignment.

SECTION 5. Summary Property Forfeiture.

All personal belongings found in the possession of violators at the moment of apprehension—including but not limited to smartphones, electronic tablets, cash, jewelry, bicycles, and motorbikes—shall be immediately confiscated and declared permanently forfeited to the City Government, to be auctioned off within 7 days without judicial hearing.

SECTION 6. Punitive Penalties on Parents and Guardians.

Parents, guardians, or household heads of violators shall be summarily assessed a punitive administrative fine of Fifty Thousand Pesos (₱50,000.00) and shall suffer imprisonment of one (1) to two (2) years in the City Jail upon non-payment.

SECTION 7. Total Exclusion of Judicial Review.

No court injunction, writ of habeas corpus, or petition for certiorari filed by private respondents shall suspend or delay the summary execution of penalties imposed under this Ordinance.

Introduced by:

HON. COUNCILOR VICTOR D. MORALES
City Councilor, City of Manila

Attested by:

ATTY. ROSARIO M. VALENZUELA
Secretary to the Sangguniang Panlungsod